

STATE OF NEW YORK

8451--A

2025-2026 Regular Sessions

IN SENATE

July 7, 2025

Introduced by Sens. FAHY, BASKIN, FERNANDEZ, GONZALEZ, GOUNARDES, HARCKHAM, HINCHEY, JACKSON, MAY, MAYER, PALUMBO, RAMOS, C. RYAN, SALAZAR, SEPULVEDA, SKOUFIS, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Internet and Technology in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "New York fundamental artificial intelligence requirements in (FAIR) news act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "New York fundamental artificial intelligence requirements in (FAIR)
3 news act".

4 § 2. The general business law is amended by adding a new article 48 to
5 read as follows:

ARTICLE 48

ARTIFICIAL INTELLIGENCE IN NEWS MEDIA

Section 1800. Legislative intent.

1801. Definitions.

1802. Transparency requirements.

§ 1800. Legislative intent. The legislature hereby finds that:

11 1. New York is the center of the American news industry and journal-
12 ists are a key part of the state's workforce.

14 2. Artificial intelligence can quickly generate articles, summaries,
15 news scripts, audio/visual and other media content that may seem profes-
16 sionally done to a lay observer. However, there is ample evidence that
17 content created by generative artificial intelligence: (a) contains
18 false or misleading content; and (b) plagiarizes by deriving its content
19 from original source material without permission or proper citation.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 These failures are a disservice to the public who relies on the news for
2 accurate information about the world.

3 3. As such, the government has a strong interest in the preservation
4 of human news work. There is an urgent need to prevent news companies
5 from using artificial intelligence at the expense of both the broader
6 public and of news workers, including human reporters, editors, news
7 writers, directors, producers, voice actors, graphic designers and other
8 newsroom professionals.

9 4. It is therefore the intent of the legislature to establish clear,
10 meaningful protections for both journalists and the broader public to
11 ensure that the integrity of the news and its workforce are safeguarded.

12 § 1801. Definitions. For the purposes of this article, the following
13 terms shall have the following meanings:

14 1. "Artificial intelligence", "artificial intelligence technology", or
15 "AI" means a machine-based system that can, for a given set of human-de-
16 defined objectives, make predictions, recommendations, or decisions influ-
17 encing real or virtual environments, and that uses machine- and human-
18 based inputs to perceive real and virtual environments, abstract such
19 perceptions into models through analysis in an automated manner, and use
20 model inference to formulate options for information or action.

21 2. "Automated employment decision-making tool" shall mean any software
22 that uses algorithms, computational models, or artificial intelligence
23 techniques, or a combination thereof, to materially automate or replace
24 human decision-making regarding employment, including but not limited to
25 wages and other compensation, hiring, selection for recruitment, disci-
26 pline, promotion, and termination. "Automated employment decision-making
27 tool" shall not include any software used primarily for basic computer-
28 ized processes, such as calculators, spellcheck tools, autocorrect func-
29 tions, spreadsheets, electronic communications, or any tool that relates
30 only to internal management affairs such as ordering office supplies or
31 processing payments, and that do not materially affect the rights,
32 liberties, benefits, safety or welfare of any individual within the
33 state.

34 3. "Generative artificial intelligence" means a class of artificial
35 intelligence models that are self-supervised and emulate the structure
36 and characteristics of input data to generate derived synthetic content,
37 including, but not limited to, images, videos, audio, text, and other
38 digital content.

39 4. "News media" shall mean any publication or programming, regardless
40 of the medium or method of distribution, that provides news, weather,
41 traffic, sports, or entertainment reports or programming. This includes
42 but is not limited to newspapers, magazines, journals, periodicals,
43 websites, newsletters, television or cable programming, radio or podcast
44 programming, and internet or satellite-based content.

45 § 1802. Transparency requirements. Any news media content published,
46 broadcast, or otherwise disseminated or accessible within the state of
47 New York, which was substantially composed, authored, or otherwise
48 created through the use of generative artificial intelligence shall
49 conspicuously imprint on the top of the page, webpage, image, graphic,
50 video or other visual or audio/visual content, or verbally orate at the
51 onset of audio content, that such content was substantially created by
52 generative artificial intelligence. If the content is eligible for copy-
53 right registration such disclosure requirement shall not apply.

54 § 3. Severability clause. If any clause, sentence, paragraph, subdivi-
55 sion or section of this act shall be adjudged by any court of competent
56 jurisdiction to be invalid, such judgment shall not affect, impair, or

1 invalidate the remainder thereof, but shall be confined in its operation
2 to the clause, sentence, paragraph, subdivision or section thereof
3 directly involved in the controversy in which such judgment shall have
4 been rendered. It is hereby declared to be the intent of the legislature
5 that this act would have been enacted even if such invalid provisions
6 had not been included herein.

7 § 4. This act shall take effect on the sixtieth day after it shall
8 have become a law.